

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Opoku-Agyemang	Team: Team # 4	CCRB Case #: 201310099	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 10/24/2013 12:40 PM	Location of Incident: 50 Simonson Avenue; 121st Precinct stationhouse		18 Mo. SOL 4/24/2015		Precinct: 121
Date/Time CV Reported Mon, 10/28/2013 10:09 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/28/2013 10:09 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Patrick Thompson	10379	942611	121 PCT
3. POM Vincenzo Trabolse	07477	942882	121 PCT
4. SGT Mark Dibenedetto	02078	940088	121 PCT
5. POM Lee Maldonado	02132	948083	121 PCT
6. POM Anthony Cimmino	11712	933693	121 PCT
7. POM Leonid Shatkin	18486	947487	121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Stephen Furno	07578	948028	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Patrick Thompson	Abuse: At 50 Simonson Avenue in Staten Island, PO Patrick Thompson stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Unsubstantiated
B . SGT Mark Dibenedetto	Force: At 50 Simonson Avenue in Staten Island, Sgt. Mark Dibenedetto pointed his gun at § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . POM Lee Maldonado	Force: At 50 Simonson Avenue in Staten Island, PO Lee Maldonado pointed his gun at § 87(2)(b) and § 87(2)(b)	C . Exonerated
D . POM Patrick Thompson	Force: At 50 Simonson Avenue in Staten Island, PO Patrick Thompson pointed his gun at § 87(2)(b) and § 87(2)(b)	D . Exonerated
E . Officers	Discourtesy: At 50 Simonson Avenue in Staten Island, officers spoke discourteously to § 87(2)(b)	E . Officer(s) Unidentified
F . POM Lee Maldonado	Discourtesy: At 50 Simonson Avenue in Staten Island, PO Lee Maldonado spoke rudely to § 87(2)(b)	F . Unsubstantiated
G . POM Patrick Thompson	Abuse: At 50 Simonson Avenue in Staten Island, PO Patrick Thompson frisked § 87(2)(b)	G . Substantiated
H . POM Lee Maldonado	Abuse: At 50 Simonson Avenue in Staten Island, PO Lee Maldonado frisked § 87(2)(b)	H . Unsubstantiated
I . POM Lee Maldonado	Abuse: At 50 Simonson Avenue in Staten Island, PO Lee Maldonado searched § 87(2)(b)	I . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
J . POM Leonid Shatkin	Abuse: At 50 Simonson Avenue in Staten Island, PO Leonid Shatkin frisked § 87(2)(b)	J . Unsubstantiated
K . POM Leonid Shatkin	Abuse: At 50 Simonson Avenue in Staten Island, PO Leonid Shatkin searched § 87(2)(b)	K . Unsubstantiated
L . POM Leonid Shatkin	Abuse: At 50 Simonson Street in Staten Island, PO Leonid Shatkin strip-searched § 87(2)(b)	L . Unsubstantiated
M . Officers	Abuse: At 50 Simonson Avenue in Staten Island, officers frisked § 87(2)(b)	M . Officer(s) Unidentified
N . Officers	Abuse: At 50 Simonson Avenue in Staten Island, officers searched § 87(2)(b)	N . Officer(s) Unidentified
O . Officers	Abuse: At 50 Simonson Avenue in Staten Island, officers searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	O . Officer(s) Unidentified
P . SGT Mark Dibenedetto	Abuse: At the 121st Precinct Stationhouse, Sgt. Mark Dibenedetto authorized the strip-search of § 87(2)(b)	P . Substantiated
Q . SGT Mark Dibenedetto	Abuse: At the 121st Precinct Stationhouse, Sgt. Mark Dibenedetto authorized the strip-search of § 87(2)(b)	Q . Substantiated
R . SGT Mark Dibenedetto	Abuse: At the 121st Precinct Stationhouse, Sgt. Mark Dibenedetto strip-searched § 87(2)(b) and § 87(2)(b) in a public area.	R . Unsubstantiated
S . POM Lee Maldonado	Abuse: At the 121st Precinct Stationhouse, PO Lee Maldonado strip-searched § 87(2)(b) and § 87(2)(b) in a public area.	S . Unsubstantiated
T . POM Vincenzo Trabolse	Abuse: At the 121st Precinct Stationhouse, PO Vincenzo Trabolse strip-searched § 87(2)(b) and § 87(2)(b) in a public area.	T . Unsubstantiated
U . POM Anthony Cimmino	Abuse: At the 121st Precinct Stationhouse, PO Anthony Cimmino did not obtain medical treatment for § 87(2)(b)	U . Unsubstantiated
V . POM Patrick Thompson	Abuse: At the 121st Precinct stationhouse, PO Patrick Thompson did not obtain medical treatment for § 87(2)(b)	V . Unsubstantiated
W . SGT Mark Dibenedetto	Abuse: Sgt. Mark Dibenedetto authorized an improper arrest of § 87(2)(b)	W . Substantiated
X . POM Patrick Thompson	Abuse: PO Patrick Thompson issued an improper summons to § 87(2)(b)	X . Substantiated

Case Summary

At approximately 12:40 p.m. on October 24, 2013, a marked police van driven by PO Patrick Thompson of the 121st Precinct followed a beige SUV from the intersection of § 87(2)(b) and § 87(2)(b) to 50 Simonson Avenue, in Staten Island, stopping the SUV at the latter location **(Allegation A)**. A second police car, an unmarked sedan, approached the SUV from the opposite direction. The driver of the SUV was § 87(2)(b) in the front passenger seat was § 87(2)(b) and in the rear of the SUV was § 87(2)(b). Inside the marked van with PO Thompson were PO Leonid Shatkin and PO Antonio Cimmino of the 121st Precinct and inside the unmarked car were Sgt. Mark DiBenedetto and PO Lee Maldonado, also of the 121st Precinct. PO Thompson and PO Maldonado exited their vehicles with their guns pointed at the SUV, and Sgt. DiBenedetto allegedly did so as well **(Allegations B, C, and D)**. Multiple officers, § 87(2)(b) could not identify which ones, allegedly said to § 87(2)(b) “Get your fucking hands up,” **(Allegation E)** and PO Maldonado allegedly said to him, “Get the fuck out of the car” **(Allegation F)**. The occupants of the vehicle were removed from the SUV, at which point PO Thompson frisked § 87(2)(b) **(Allegation G)**, and PO Maldonado allegedly frisked and searched § 87(2)(b) **(Allegations H and I)**. The officers then informed the occupants that they smelled marijuana and asked them if they had any marijuana on them. PO Shatkin proceeded to frisk and search § 87(2)(b) **(Allegations J and K)**, allegedly finding three bags of marijuana in his shoe and jacket in the process. PO Shatkin also allegedly pulled § 87(2)(b) s pants and underwear outwards and looked inside **(Allegation L)**. Officers, § 87(2)(b) and § 87(2)(b) could not identify which ones, frisked and allegedly searched § 87(2)(b) **(Allegations M and N)**, and searched the vehicle **(Allegation O)**. § 87(2)(b) and § 87(2)(b) were arrested and taken back to the stationhouse while the SUV was left with § 87(2)(b) who was not arrested.

At the 121st Precinct stationhouse, Sgt. DiBenedetto authorized strip searches of § 87(2)(b) and § 87(2)(b) **(Allegations P and Q)**. PO Vincenzo Trabulse of the 121st Precinct, PO Maldonado, and, allegedly, Sgt. DiBenedetto, conducted strip searches of § 87(2)(b) and § 87(2)(b) allegedly in a hallway in the cell area **(Allegations R, S, and T)**. While in the cells, § 87(2)(b) allegedly requested medical attention from PO Cimino and PO Thompson and none was received **(Allegations U and V)**. § 87(2)(b) was released from the stationhouse with summonses for possession of marijuana (Encl. F18) and disorderly conduct (Encl. F16) **(Allegations W and X)**.

§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

A Notice of Claim search was requested from the Comptroller’s Office on March 18, 2015. A response is pending and will be added to the file when received (Encl. J7). § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed four other CCRB complaints (Encl. B9). § 87(2)(b)

§ 87(2)(b)

- § 87(2)(b) has been a participant in two prior CCRB complaints (Encl. B10). § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- PO Thompson has been a member of the NYPD for eight years and has had two previous CCRB allegations in one case, wherein one allegation was substantiated. § 87(2)(g)
 - In CCRB case #201303178, a discourtesy allegation was substantiated against PO Thompson. He received instructions.
- Sgt. DiBenedetto has been a member of the NYPD for nine years and has had five previous CCRB allegations in two cases with no substantiated allegations. § 87(2)(g)
- PO Maldonado has been a member of the NYPD for six years and has had eight previous CCRB allegations in one case with no substantiated allegations. § 87(2)(g)
- PO Shatkin has been a member of the NYPD for six years and has had 21 previous CCRB allegations in nine cases with no substantiated allegations. § 87(2)(g)
- PO Trabulse has been a member of the NYPD for eight years and has had 12 previous CCRB allegations in six cases with three allegations substantiated in one of these cases. § 87(2)(g)
 - In CCRB case #201307635, allegations of stop, frisk, and search were substantiated against PO Trabulse. A command discipline was recommended by the CCRB. An NYPD disposition has yet to be made.
- PO Cimmino has been a member of the NYPD for 11 years and has had 25 previous CCRB allegations in 13 cases with a total six allegations substantiated in two of these cases. § 87(2)(g)
 - In CCRB case #201307635, allegations of stop and frisk were substantiated against PO Cimmino. A command discipline was recommended by the CCRB. An NYPD disposition has yet to be made.
 - In CCRB case #201401027, allegations of vehicle stop, retaliatory summons, discourtesy (word), and discourtesy (action) were substantiated against PO Cimmino. A command discipline was recommended by the CCRB. An NYPD disposition has yet to be made.

Potential Issues

§ 87(2)(b) knew § 87(2)(b) only by the nickname “§ 87(2)(b) § 87(2)(b) only knew him by his first name, and neither had any contact information for him. § 87(2)(b) was identified via the Stop, Question, and Frisk Report (hereafter, “UF-250”) filed by PO Thompson in regards to him (Encl. F26-27). Letters were sent to § 87(2)(b) at the address listed on the UF-250 with no response. Two telephone numbers were obtained for him via Lexis-Nexis searches. Calls were made to both numbers. At the first number, the respondent stated that she did not know § 87(2)(b). At the second number, a female

respondent stated that § 87(2)(b) no longer resided at the location. She stated that she did not have any current contact information for him and refused to take a message for him because she does not “talk to him anymore.”

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) and § 87(2)(b) consistently stated that there were two police vehicles involved in this incident, a marked van and an unmarked sedan. Sgt. DiBenedetto, PO Maldonado, PO Thompson, PO Shatkin, and PO Cimmino also consistently stated that there were two police vehicles at the scene, placing Sgt. DiBenedetto and PO Maldonado in the unmarked car and the other three officers in the marked van. § 87(2)(b) described the driver of the unmarked car as an approximately 5’3” to 5’4” tall white male and § 87(2)(b) described him as an approximately 5’5” tall white male. PO Maldonado, who was identified by the officers as the operator of the unmarked car, is a § 87(2)(b) white Hispanic male. § 87(2)(g)

§ 87(2)(b) alleged that this officer spoke to him discourteously, frisked and searched him at the scene of the car stop, and strip-searched him in a public area of the stationhouse. § 87(2)(b) alleged that this officer pointed his gun at them as he approached the SUV. § 87(2)(g)

§ 87(2)(b) described the passenger in the unmarked car as a white male who was taller than PO Maldonado with a heavyset build. § 87(2)(b) could not describe this officer. Sgt. DiBenedetto, who is a § 87(2)(b) white male, was identified by the officers as the passenger in unmarked car. § 87(2)(g)

§ 87(2)(b) alleged that this officer pointed his gun at the occupants of the SUV as he approached the SUV and strip-searched both he and § 87(2)(b) in a public area of the stationhouse. Sgt. DiBenedetto identified himself as the officer who authorized the arrests and strip searches of § 87(2)(b) and § 87(2)(b). § 87(2)(g)

§ 87(2)(b) described a blond-haired white male officer with a heavyset build whose name he obtained as “Thompson.” He stated that this officer handed him his two summonses and ignored his request for medical attention. PO Thompson, who is a § 87(2)(b) white male with blond hair, acknowledged having issued and given § 87(2)(b) his two summonses. Furthermore, PO Thompson stated that it was his decision to stop the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants, that he approached the vehicle with his gun pointed, and that he frisked § 87(2)(b). § 87(2)(g)

§ 87(2)(b) described a white male officer with a heavy, possibly Russian, accent and alleged that this officer frisked, searched him, and pulled his pants and underwear outwards and looked inside. PO Shatkin, who is a § 87(2)(b) white male, acknowledged having been the officer who searched § 87(2)(b). PO Shatkin was the only officer interviewed for this case who spoke with a distinctive accent. § 87(2)(g)

§ 87(2)(b) described an approximately 5'6" tall white male with a slim build and black hair, who was sitting at a desk in the cell area of the 121st Precinct stationhouse, as not having provided medical attention in response to his request. PO Cimmino, who is a § 87(2)(b) white male with black hair, stated that he was assigned by Sgt. DiBenedetto to sit at the desk in the cell area to guard the prisoners when they returned to the stationhouse. § 87(2)(g)

§ 87(2)(b) described an approximately 6'0" tall, 250 pound white male with a heavysset build who had not been at the scene of the stop as having been involved in his strip search. PO Trabolse, who is a § 87(2)(b) white male and had not been at the scene of the stop, acknowledged having conducted the strip searches of § 87(2)(b) and § 87(2)(b). PO Trabolse recalled that there was one other officer with him during the strip searches but he did not recall which officer it was. § 87(2)(g)

§ 87(2)(b) stated that, aside from PO Maldonado, other officers whom he could not describe also spoke to him discourteously as they approached the SUV during the car stop. § 87(2)(g)

Neither § 87(2)(b) nor § 87(2)(b) could describe which officer searched § 87(2)(b). Furthermore, though the UF-250 filed by PO Thompson for § 87(2)(b) notes that he was frisked, PO Thompson could not recall which officer frisked him and all other officers either could not recall § 87(2)(b) or denied having interacted with him. § 87(2)(g)

While it is undisputed that the SUV was searched, neither § 87(2)(b) nor § 87(2)(b) could recall which officers did so and all of the officers denied having been involved in searching the car. § 87(2)(g)

Allegations Not Pleaded

- **Physical Force:** § 87(2)(b) alleged that officers took § 87(2)(b) to the ground while handcuffing him and that an officer punched § 87(2)(b) in the head. § 87(2)(b) himself made no such allegations. § 87(2)(g)

Recommendations

Allegation A – Abuse of Authority – At 50 Simonson Avenue in Staten Island, PO Patrick Thompson stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) called the CCRB and filed his initial complaint on October 28, 2013 (Encl. D1-3). He provided a sworn statement at the CCRB on November 12, 2013 (Encl. E1-6), as did § 87(2)(b) (Encl. E8-13). § 87(2)(b) provided additional information in a telephone statement on March 18, 2015 (Encl. E7). § 87(2)(g)

Sgt. DiBenedetto was interviewed on February 19, 2015 (Encl. F4-7). PO Thompson (Encl. F29-36), PO Maldonado (Encl. F43-47), and PO Christopher Furno of the 121st Precinct (Encl. F52-53) were

interviewed on March 5, 2015. PO Cimmino was interviewed on March 6, 2015 (Encl. F58-60). PO Trabolse was interviewed on March 11, 2015 (Encl. F65-66) and PO Shatkin was interviewed on March 12, 2015 (Encl. F70-72). § 87(2)(g)

§ 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(f)

At some point they observed § 87(2)(b) and § 87(2)(b) exit the apartment unit they had been observing and enter a vehicle. Sgt. DiBenedetto made a call to PO Thompson, who was driving the marked van, located approximately a block away on § 87(2)(b). According to both Sgt. DiBenedetto and PO Thompson, Sgt. DiBenedetto instructed PO Thompson to “keep an eye” on the vehicle. Both denied that Sgt. DiBenedetto instructed PO Thompson to stop the car. Neither PO Cimmino nor PO Maldonado recalled the information they heard relayed by Sgt. DiBenedetto and PO Shatkin did not recall this portion of the incident.

PO Thompson and PO Maldonado both stated that, as they observed the aforementioned SUV exit the parking lot in front of the apartment complex, it made a right onto § 87(2)(b) went around a bus that was at a bus stop at the intersection of § 87(2)(b) and § 87(2)(b) crossing double-yellow lines into oncoming traffic in the process, and then made a right onto § 87(2)(b) going through a red light in the process. Both of them stated that at this point the marked van turned on its lights and sirens and followed the car. Sgt. DiBenedetto stated that he did not observe the above traffic infractions, but that he was informed of it by the officers later in incident. PO Cimmino stated that he recalled that the SUV was driving “erratically,” but did not recall whether he observed it commit any traffic infractions.

§ 87(2)(b) and § 87(2)(b) both stated that the marked van followed them approximately 15 to 20 blocks from § 87(2)(b) and § 87(2)(b) to Simonson Avenue. They stated that the van did not turn on its sirens until they got to Simonson Avenue and both denied that § 87(2)(b) cut off a bus at any point.

PO Thompson and PO Maldonado both stated that the van had its lights and sirens on from § 87(2)(b) and § 87(2)(b) and that the SUV did not stop until PO Maldonado cut it off by driving towards it up Simonson Avenue. PO Cimmino, on the other hand, stated that the marked van’s lights and sirens were not on while they were following the SUV and that, immediately after the lights and sirens were initiated, the SUV stopped.

After the vehicle stop, PO Thompson charged § 87(2)(b) with § 87(2)(b). The narrative on his arrest report (Encl. F13-15) is consistent with the statement PO Thompson provided to the CCRB.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be **Unsubstantiated**.

Allegation B – Force – At 50 Simonson Avenue in Staten Island, Sgt. Mark DiBenedetto pointed his gun at § 87(2)(b) and § 87(2)(b)

Allegation C – Force – At 50 Simonson Avenue in Staten Island, PO Lee Maldonado pointed his gun at § 87(2)(b) and § 87(2)(b)

Allegation D – Force – At 50 Simonson Avenue in Staten Island, PO Patrick Thompson pointed his gun at § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) both alleged that several officers approached the SUV with their guns pointed at the occupants. § 87(2)(b) specifically recalled PO Maldonado and Sgt. DiBenedetto as having done so, while § 87(2)(b) only specifically recalled PO Maldonado.

PO Thompson and PO Maldonado stated that the fleeing of the SUV from officers led them to fear that the occupants may be armed, causing them to fear for their safety. They therefore drew and pointed their guns as they approached the car. Sgt. DiBenedetto did not recall when he arrived at the scene and did not recall whether he drew his gun at any point.

There exists a broad standard for the acceptable drawing and point of a firearm, allowing an officer to do so as long as he or she has a reasonable fear for his or her own or another person's safety. *NYPD v. Gliner*, OATH Index No. 955/00 (Sept. 6, 2000) (Encl. A2-21).

§ 87(2)(g)

It is therefore recommended that
Allegations B, C, and D be Exonerated.

Allegation E – Discourtesy – At 50 Simonson Avenue in Staten Island, officers spoke discourteously to § 87(2)(b)

Allegation F – Discourtesy – At 50 Simonson Avenue in Staten Island, PO Lee Maldonado spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that, as officers approached the car, he heard multiple officers whom he could not describe say, "Get your fucking hands up," and that PO Maldonado allegedly said to him, "Get the fuck out of the car." § 87(2)(b) made neither of these allegations. § 87(2)(b) however, alleged in his initial complaint that, later in the incident an officer, whom he could not describe, told § 87(2)(b) "We know you sell marijuana, you motherfucker." § 87(2)(b) did not repeat this in his sworn statement and § 87(2)(b) himself never made this allegation. PO Maldonado and all of the other officers denied having made any of these statements, having used a variation of the word "fuck" while speaking during this incident, or having heard any other officer do so. § 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Officers Unidentified** and **Allegation F** as **Unsubstantiated**.

Allegation G – Abuse of Authority – At 50 Simonson Avenue in Staten Island, PO Patrick Thompson frisked § 87(2)(b)

Allegation H – Abuse of Authority – At 50 Simonson Avenue in Staten Island, PO Lee Maldonado frisked § 87(2)(b)

Allegation I – Abuse of Authority – At 50 Simonson Avenue in Staten Island, PO Lee Maldonado searched § 87(2)(b)

§ 87(2)(b) stated that, after he exited the SUV as instructed by officers, PO Maldonado patted down his arms and chest and then went into his vest pockets. § 87(2)(b) also stated that § 87(2)(b)

§ 87(2)(b) was searched but he could not describe the search or the officer who did so.

PO Thompson stated that as he approached the car, he instructed § 87(2)(b) to put the car into park, turn off the engine, put his hands out of the window, and step out of the car, all of which § 87(2)(b) did. PO Thompson later stated that, when § 87(2)(b) put his hands out of the window, he opened the driver's side door, grabbed § 87(2)(b)'s arm, and pulled him out of the vehicle. Once § 87(2)(b) was out of the vehicle, PO Thompson placed him against the side of the car and gave him a "quick frisk to make sure he had no weapons." PO Thompson did not recall where on § 87(2)(b)'s body he frisked but stated that he "probably" frisked "everywhere." PO Thompson stated that he saw no bulges on § 87(2)(b) and felt no objects during the frisk that he believed to be a weapon. He denied having gone into any of § 87(2)(b)'s pockets or having removed anything from them at this point in the incident, but stated that he did so later in the incident, once it was determined that § 87(2)(b) was driving with a suspended license and was placed under arrest. PO Thompson stated that he frisked § 87(2)(b) "because he ran from us and I wanted to make sure he had no weapons on him. I didn't want to get hurt." PO Thompson affirmed that he had no other reasons, aside from him fleeing from the police in the SUV, to believe that there were weapons on § 87(2)(b).

In order to frisk a person, an officer must have reasonable suspicion that a person is armed. People v. DeBour, 40 N.Y. 2d 210 (1976) (Encl. A22-32). An officer's reasonable belief that an individual who has committed a non-violent crime intends to flee does not justify a frisk of the individual People v. Shuler, 98 A.D.3d 695 (2nd Dept. 2012) (Encl. A41-42).

§ 87(2)(g)

It is therefore recommended that **Allegation G** be **Substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegations H and I** be **Unsubstantiated**.

Allegation J – Abuse of Authority – At 50 Simonson Avenue in Staten Island, PO Leonid Shatkin frisked § 87(2)(b)

Allegation K – Abuse of Authority – At 50 Simonson Avenue in Staten Island, PO Leonid Shatkin searched § 87(2)(b)

§ 87(2)(b) stated that, once he and the other occupants were out of the SUV, they were taken to the rear of the vehicle. § 87(2)(b) stated that he was upset about having been removed from the car and he raised his voice and cursed at the officers. At the back of the vehicle, the officers informed § 87(2)(b) that they had pulled them over because their car had cut off a bus. The officers also stated that they smelled marijuana. § 87(2)(b) stated that he did not smell any marijuana. The officers then asked whose vehicle it was and if § 87(2)(b) or the other passengers had marijuana on them. After questioning him, PO Shatkin patted down § 87(2)(b)'s chest and pants pockets, and then put his hands in § 87(2)(b)'s front pants pockets. PO Shatkin instructed § 87(2)(b) to take off his sneakers. § 87(2)(b) refused. PO Shatkin took § 87(2)(b)'s shoes off and searched them. The officers informed § 87(2)(b) that they had recovered marijuana in his shoes and that he was going to be arrested because he did not have identification. § 87(2)(b) stated that,

to his knowledge, he did not have any marijuana on him. He told the officers that his identification was inside the car but they told him to shut up.

PO Shatkin acknowledged searching § 87(2)(b) though he did not recall details of the search itself. In both his memo book entry (Encl. F68-69) and his sworn statement, he stated that he searched § 87(2)(b) incident to his arrest for disorderly conduct. PO Shatkin recalled that during the stop, § 87(2)(b) was acting in a “disorderly” manner and did not have identification. PO Shatkin, however, could not recall exactly what § 87(2)(b) was doing that led to the determination that he was being “disorderly.” Sgt. DiBenedetto instructed PO Shatkin to place § 87(2)(b) under arrest in order to return him to the stationhouse to issue him a summons. It was at this point that he searched § 87(2)(b) incident to the arrest and found marijuana on him. Sgt. DiBenedetto stated that both § 87(2)(b) and § 87(2)(b) were not searched until the decision was made to arrest them. PO Thompson stated that he did not observe the interaction between PO Shatkin and § 87(2)(b) and PO Cimmino did not recall observing any officers searching any of the occupants of the SUV.

It is generally held that officers may frisk and search an individual incident to their arrest. People v. DeBour, 40 N.Y. 2d 210 (1976) (Encl. A22-32). NYPD Patrol Guide Procedure 208-05 (Encl. A33-35) instructs officer to frisk and search an arrested individual before, or immediately after, handcuffing them.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that
Allegations J and K be Unsubstantiated.

Allegation L – Abuse of Authority – At 50 Simonson Avenue in Staten Island, PO Leonid Shatkin strip-searched § 87(2)(b)

In his in-person CCRB statement on November 12, 2013, § 87(2)(b) stated that after searching him at the scene, PO Shatkin turned him around and pulled his pants and underwear away from his waist. In the in-person statement, § 87(2)(b) stated that PO Shatkin did not reach in his pants. However, in his telephone statement on March 18, 2015, he stated that the officer did so, though without pulling § 87(2)(b)'s pants down. § 87(2)(b) made no mention of having observed this in his account. Sgt. DiBenedetto, PO Shatkin, PO Cimmino, PO Maldonado, and PO Thompson all testified that they did not recall this having occurred.

NYPD Patrol Guide Procedure 208-05 (Encl. A33-35) defines a strip search as any search in which an individual's undergarments and/or private areas are exposed or in which an individual's clothing is removed, lifted up, or pulled down to expose undergarments or private areas.

§ 87(2)(g)

It is therefore recommended that
Allegation L be Unsubstantiated.

Allegation M – Abuse of Authority – At 50 Simonson Avenue in Staten Island, officers frisked

§ 87(2)(b)

Allegation N – Abuse of Authority – At 50 Simonson Avenue in Staten Island, officers searched

§ 87(2)(b)

Neither § 87(2)(b) nor § 87(2)(b) could describe which officer searched § 87(2)(b). Furthermore, though the UF-250 filed by PO Thompson for § 87(2)(b) notes that he was frisked, PO Thompson could not recall which officer frisked him and all other officers either could not recall § 87(2)(b) or denied having interacted with him. § 87(2)(g). It is therefore recommended that **Allegations M and N** be closed as **Officers Unidentified**.

Allegation O – Abuse of Authority – At 50 Simonson Avenue in Staten Island, officers searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

While it is undisputed that the SUV was searched, neither § 87(2)(b) nor § 87(2)(b) could recall which officers did so and all of the officers denied having been involved in searching the SUV. PO Thompson, PO Shatkin, and PO Maldonado all stated that they smelled marijuana emanating from inside the SUV or on the occupants during this incident. Three bags of marijuana were vouchered as having been recovered from § 87(2)(b) (Encl. F20-21). § 87(2)(b) noted that the officers mentioned having smelled marijuana at the scene but denied having had been in possession of marijuana or that there was an odor of marijuana. § 87(2)(b) stated that he smoked marijuana from the beginning of the day to the end of the day but that he had not smoked since approximately 5:00 a.m. that day. No officer, however, admitted to having searched the car or posited the smell of marijuana as a possible reason for the search of the car. § 87(2)(g).

§ 87(2)(b). It is therefore recommended that **Allegations O** be closed as **Officers Unidentified**.

Allegation P – Abuse of Authority – At the 121st Precinct Stationhouse, Sgt. Mark DiBenedetto authorized the strip-search of § 87(2)(b)

Allegation Q – Abuse of Authority – At the 121st Precinct Stationhouse, Sgt. Mark DiBenedetto authorized the strip-search of § 87(2)(b)

Sgt. DiBenedetto stated that, when he arrived at the scene of the stop, an officer informed him that as the officers were approaching the vehicle after it had stopped, the officer had observed § 87(2)(b) place a plastic bag, that he believed to contain narcotics, somewhere on his body. Sgt. DiBenedetto could not recall which officer provided this account to him. Sgt. DiBenedetto did not recall the body part specified by the officer. No other officer interviewed by the CCRB recalled having made any such observation or having heard it reported to Sgt. DiBenedetto. As previously discussed, PO Shatkin stated that he recovered three bags of marijuana from § 87(2)(b)'s right foot during a search at the scene. PO Thompson stated that § 87(2)(b) was arrested in order to verify his identification at the stationhouse and that once his identification was confirmed, he was released with two summonses. This was corroborated by PO Shatkin's statement that § 87(2)(b) was arrested because he was disorderly and did not have identification.

Sgt. DiBenedetto stated that, at some point, he was unsure whether it was at the scene or at the stationhouse, he became aware of the names of § 87(2)(b) and § 87(2)(b). At this point he recognized the names and recalled that he had had previous dealings with both individuals in which they were arrested for selling drugs and also for transporting drugs in vehicles. He did not recall whether he was their arresting officer on any of these prior occasions but recalled that he had been on the teams that made these arrests. On the basis of this past knowledge and the information provided to him by the officer who stated that he had

observed § 87(2)(b) conceal what he believed to be narcotics as they were approaching the vehicle, Sgt. DiBenedetto instructed PO Trabolse to conduct strip searches of both § 87(2)(b) and § 87(2)(b). Sgt. DiBenedetto recalled that marijuana was found on § 87(2)(b) at some point but could not recall whether it was recovered at the scene or during the strip-search and never cited the marijuana found on § 87(2)(b) to the CCRB as a contributing factor to his authorization of the strip-search.

NYPD Patrol Guide Procedure 208-05 (Encl. A33-35) notes that a strip search may only be conducted when there is reasonable suspicion that weapons, contraband, or evidence may be concealed on the person or in the clothing in such a manner that they may not be discovered by the previous search methods. Factors that should be considered in determining whether an appropriate basis exists for a strip search include the nature of the crime (i.e., serious violent felony), arrest circumstances, subject's reputation (i.e., extremely violent person), acts of violence, unaccounted "hits" on magnetometers or walk-through metal detectors, and any discoveries or information from previous searches of the same individual or others arrested with him/her. Furthermore, a strip search should not be conducted after a decision is made to void an arrest or to release the prisoner immediately upon issuance of a summons.

§ 87(2)(g)

It is therefore recommended that **Allegations P and Q** be **Substantiated**.

Allegation R – Abuse of Authority – At the 121st Precinct Stationhouse, Sgt. Mark DiBenedetto strip-searched § 87(2)(b) and § 87(2)(b) in a public area.

Allegation S – Abuse of Authority – At the 121st Precinct Stationhouse, PO Lee Maldonado strip-searched § 87(2)(b) and § 87(2)(b) in a public area.

Allegation T – Abuse of Authority – At the 121st Precinct Stationhouse, PO Vincenzo Trabolse strip-searched § 87(2)(b) and § 87(2)(b) in a public area.

§ 87(2)(b) stated that, while he was in the cells, approximately five officers, the only two of whom he recalled being PO Trabolse and PO Maldonado, attempted to take him into a separate bathroom area. § 87(2)(b) admitted that in response to this attempt, he made his body a dead weight so they could not force him into the room. § 87(2)(b) told the CCRB that did not want to be searched in the bathroom because there were no cameras in there. Instead, he indicated that the officers who had removed him from the cell strip searched him outside the bathroom, but could not describe where he was searched. He alleged that PO Maldonado put on gloves and removed his pants and underwear and spread his buttocks apart. § 87(2)(b) also stated that he observed this occur but stated that it was Sgt. DiBenedetto who spread § 87(2)(b)'s buttocks apart. He stated that he was also removed from his cell and strip searched by the officers in the hallway and that Sgt. DiBenedetto also spread his buttocks.

PO Maldonado stated that only he and PO Trabolse were involved in the strip searches. PO Trabolse stated that it was he and one other officer but he did not recall which officer. Both PO Maldonado and PO Trabolse stated that the strip searches occurred separately in a private location, either the bathroom or the

interrogation room, and denied having touched either male during the strip searches. Both PO Maldonado and PO Trabolse stated that the strip searches consisted of the officers instructing § 87(2)(b) and § 87(2)(b) to take off their clothes and the officers then searched through the discarded clothing. The officers stated that both § 87(2)(b) and § 87(2)(b) complied with their instructions during the strip searches. Both Sgt. DiBenedetto and PO Thompson stated that PO Trabolse conducted the strip searches and both denied having been present for either strip search.

NYPD Patrol Guide Procedure 208-05 (Encl. A33-35) requires that strip searches be done in private locations and bars officers from conducting cavity searches.

§ 87(2)(g)

It is therefore recommended that **Allegations R, S, and T** be **Unsubstantiated**.

Allegation U – Abuse of Authority – At the 121st Precinct Stationhouse, PO Anthony Cimmino did not obtain medical treatment for § 87(2)(b)

Allegation V – Abuse of Authority – At the 121st Precinct stationhouse, PO Patrick Thompson did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) stated that he requested medical attention and an ambulance was called for him and he was taken to a hospital. § 87(2)(b) stated that he requested medical attention from PO Cimmino, who told him to wait for his arresting officer, PO Thompson. When he requested medical attention from PO Thompson, § 87(2)(b) stated that PO Thompson ignored him. Both PO Thompson and PO Cimmino recalled § 87(2)(b) requesting medical attention but both officers did not recall § 87(2)(b) requesting medical attention. § 87(2)(g)

It is therefore recommended that **Allegations U and V** be **Unsubstantiated**.

Allegation W – Abuse of Authority – Sgt. Mark Dibenedetto authorized an improper arrest of § 87(2)(b)

Allegation X – Abuse of Authority – PO Patrick Thompson issued an improper summons to § 87(2)(b)

As previously discussed, Sgt. DiBenedetto stated that an officer, he did not recall who, informed him that as they were approaching the SUV after it had stopped, he had observed § 87(2)(b) place a plastic bag, that he believed to contain narcotics, somewhere on his body. Sgt. DiBenedetto did not recall the body part specified by the officer. Sgt. DiBenedetto stated to the CCRB that he authorized an arrest for § 87(2)(b) solely on the basis of this observation made by the officer and that a search was not conducted of § 87(2)(b) until after he was deemed to be under arrest. No other officer recalled having made any such observation or having heard it reported to Sgt. DiBenedetto.

As previously discussed, PO Shatkin recalled that, during the stop, § 87(2)(b) was acting in a “disorderly” manner and did not have identification. PO Shatkin stated to the CCRB that Sgt. DiBenedetto instructed him to place § 87(2)(b) under arrest in order to return him to the stationhouse to issue him a summons for disorderly conduct. It was at this point that he searched § 87(2)(b) incident to the arrest and found marijuana on him.

It is undisputed that § 87(2)(b) raised his voice and cursed at the officers during the stop. All of the officers described him as having done so and § 87(2)(b) also acknowledged having done so. § 87(2)(b) stated that the area where the incident occurred was a “private block” and that there

were no other civilians in the area aside from him and the other occupants of the SUV at the time of the incident. PO Thompson did not know whether a crowd formed at the scene as a result of § 87(2)(b)s behavior because he “wasn’t paying attention.” PO Cimmino and PO Maldonado stated that there were no civilians around the area at the time and no crowd formed as a result of the individuals’ behavior. PO Shatkin stated that the area of the car stop was generally a busy area but he did not recall the conditions on that day. The investigation therefore determined that there were no civilians around at the time and location of the stop and no crowd’s formed.

PO Thompson issued § 87(2)(b) a summons for “Dis con: tumultuous behavior.” The narrative notes that § 87(2)(b) “did scream and yell, causing public annoyance and alarm.”

Penal Law 240.20(1) (Encl. A1) states that, “A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof: He engages in fighting or in violent, tumultuous or threatening behavior.” A determination that a person has committed disorderly conduct requires that their behavior cause “public harm” that extends beyond the officers to whom the person is directing his abusive or coarse language. People v. Baker, 2013 N.Y. LEXIS 116 (2013) (Encl. A36-40).

§ 87(2)(g)
Therefore, the summons issued to § 87(2)(b) for disorderly conduct was improper and it is recommended that **Allegation X** be **Substantiated**.

§ 87(2)(g)
It is therefore recommended that **Allegation W** be **Substantiated**.

Team: 4

Investigator: _____ Alexander Opoku-Agyemang March 25, 2015
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date